

		Pursuant to Code of Civil Procedure section 405.38, the prevailing party on a motion to expunge is entitled to recover its attorney fees and cost unless specified findings were made supporting the denial of fees. (<i>Castro v. Superior Court</i> (2004) 116 Cal.App.4th 1010, 1018.) Cross-Defendant Cui is the prevailing party for purposes of section 405.38. Cross-Defendant Cui realized her litigation objectives by successfully bringing the motion to expunge lis pendens. The Court awards attorney fees to the prevailing party Cross-Defendant Cui in the sum of \$2,475 (4.5 hours x 550). Cross-Complainants shall pay the attorney fees directly to Cross-Defendant Cui's attorney of record within 30 days of notice of ruling. Cross-Defendant Chelsea Cui to give notice.
53	Phan vs. Bleu Restaurant and Dancing 24-01448536	Motion to Quash Service of Summons The Motion to Quash Service of Summons brought by Specially Appearing Defendant Kenney Nguyen is GRANTED, pursuant to Code of Civil Procedure section 418.10, subd. (a)(1). The service of the summons and complaint which was purportedly completed on May 1, 2026, as reflected in the Proof of Service filed on May 4, 2026 (ROA No. 75), is quashed. The Request for Judicial Notice made by Specially Appearing Defendant Kenney Nguyen (ROA No. 83) is GRANTED, pursuant to Evidence Code section 452, subdivisions (d) and (h). (See also <i>Poseidon Development, Inc. v. Woodland Lane Estates, LLC</i> (2007) 152 Cal.App.4th 1106, 1117.) "A defendant on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion...[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).) "In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant..." (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 793.) "A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant." (<i>Ruttenberg v. Ruttenberg</i> (1997) 53 Cal.App.4th 801, 808.)

		Additionally, “[w]hen a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.) A responding plaintiff is required to show “at least substantial compliance with the relevant statutory requisites for service....” (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1165.) While Plaintiff filed a Proof of Service on May 4, 2026, executed by a Registered Process Service, which purports to establish substituted service on “Kenny Nguyen” (See ROA No. 75), Specially Appearing Defendant Kenney Nguyen has sufficient disputed it. (See <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) Defendant Kenney Nguyen declares the property 7112 Blue Sails Drive in Huntington Beach was sold by him and his wife, on September 26, 2023. (See ¶13 of Kenney Nguyen Declaration and Exhibit C thereto.) The attached Grant Deed confirms the transfer from Kenney K. Nguyen and Trang T. Nguyen, as Husband and Wife, to ThoaiVy LLC, on September 26, 2023. (Ibid; See also Exhibit 2 of RJN [ROA No. 83].) In addition to the above, Defendant offers the Declaration of Camilla Nguyen, the Managing Member of ThoaiVy, LLC, who declares that ThoaiVy, LLC purchased the property on September 26, 2023. (¶2-¶4 of Camilla Nugyen Declaration.) “From the date the property was acquired, until the present time, KENNEY NGUYEN has not occupied the property, nor has he operated any form of business enterprise from the location of this property.” (¶6 of Camilla Nguyen Declaration.) In addition to the above, Ms. Camilla Nguyen declares: “While my last name is also ‘Nguyen,’ I am not related to KENNEY NGUYEN and any representation to the contrary is completely false.” (¶8 of Camilla Nguyen Declaration.) To complete substituted service pursuant to Code of Civil Procedure section 415.20, subdivision (b), a copy of the summons and complain must be left at “the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office....” (Code Civ. Proc., § 415.20, subd. (b).) Based on the evidence submitted, the address used for service is neither the residence nor usual place of business of Kenney Nguyen and, consequently, the identified service fails to comply with Code of Civil Procedure section 415.20, subdivision (b).
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		Additionally, as the instant Motion is unopposed, Plaintiff has not rebutted the above evidence nor demonstrated “facts requisite to an effective service.” (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.) Thus, the Motion to Quash is GRANTED.
54	RX Development Associates, INC. vs. Selective Diagnostics, INC. 21-01190952	Motion to Set Aside/Vacate Default and Judgment No Tentative Ruling. Parties to Appear.
55	Khairalla vs. Mercedes-Benz USA, LLC 25-01523475	Motion to Compel Arbitration Defendant Mercedes-Benz USA, LLC’s motion to compel arbitration and stay this case is GRANTED. <u>The Arbitration Agreement</u> Defendant MBUSA contends the arbitration agreement is located within the Lease Agreement. Defendant purports to attach the Lease Agreement as Ex. 1 to the Declaration of Remillard. (ROA 13.) However, as noted by Plaintiff, Ex. 1 is not the Lease Agreement, but other documents relating to the subject vehicle. Defendant concedes this attachment was inadvertent, points out that the relevant terms of the arbitration agreement were stated verbatim in the motion, and attaches the Lease Agreement to the Supplemental Declaration of Tingen. (ROA 42.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. [Citation]. A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signatures.’ [Citation.] At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and